

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Julia Sapienza	Team: Squad #05	CCRB Case #: 202301513	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 02/22/2023 12:39 AM	Location of Incident: Outside of 127 Kingsland Avenue	18 Mo. SOL 8/22/2024	Precinct: 94		
Date/Time CV Reported Wed, 02/22/2023 5:00 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 02/22/2023 5:00 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. LT Gabriel Cuevas	00000	945633	083 PCT
2. PO Stefan Weaver	12423	965901	081 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Nicholas Angello	24277	962217	094 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Stefan Weaver	Abuse: Police Officer Stefan Weaver stopped § 87(2)(b)	A . Substantiated
B . LT Gabriel Cuevas	Abuse: Lieutenant Gabriel Cuevas stopped § 87(2)(b)	B . Substantiated
C . LT Gabriel Cuevas	Force: Lieutenant Gabriel Cuevas used physical force against § 87(2)(b)	C . Within NYPD Guidelines
D . PO Stefan Weaver	Force: Police Officer Stefan Weaver used physical force against § 87(2)(b)	D . Within NYPD Guidelines
E . PO Stefan Weaver	Abuse: Police Officer Stefan Weaver frisked § 87(2)(b)	E . Substantiated
F . LT Gabriel Cuevas	Abuse: Lieutenant Gabriel Cuevas frisked § 87(2)(b)	F . Substantiated
G . LT Gabriel Cuevas	Force: Lieutenant Gabriel Cuevas used physical force against § 87(2)(b)	G . Substantiated
H . LT Gabriel Cuevas	Discourtesy: Lieutenant Gabriel Cuevas spoke discourteously to § 87(2)(b)	H . Substantiated
I . PO Stefan Weaver	Abuse: Police Officer Stefan Weaver refused to provide his shield number to § 87(2)(b)	I . Substantiated
J . PO Stefan Weaver	Abuse: Police Officer Stefan Weaver failed to provide § 87(2)(b) with a business card.	J . Substantiated
K . LT Gabriel Cuevas	Abuse: Lieutenant Gabriel Cuevas failed to provide § 87(2)(b) with a business card.	K . Substantiated

Case Summary

On February 22, 2023, § 87(2)(b) filed this complaint on the CCRB website (**Board Review 1**).

On February 22, 2023, at approximately 12:39 a.m., outside 127 Kingsland Avenue in Brooklyn, Lt. Gabriel Cuevas and PO Stefan Weaver of the Patrol Borough Brooklyn North Community Response Team stopped § 87(2)(b) and § 87(2)(b) respectively (**Allegations A-B: Abuse of Authority, substantiated**). Two of § 87(2)(b) and § 87(2)(b) friends, § 87(2)(b) and § 87(2)(b) were present during the incident. Lt. Cuevas allegedly shoved § 87(2)(b) against a wall (**Allegation C: Force, within NYPD guidelines**). PO Weaver pushed § 87(2)(b) against a wall (**Allegation D: Force, within NYPD guidelines**). PO Weaver frisked § 87(2)(b) (**Allegation E: Abuse of Authority, substantiated**). Lt. Cuevas frisked § 87(2)(b) (**Allegation F: Abuse of Authority, substantiated**). § 87(2)(b) § 87(2)(b) § 87(2)(b) and § 87(2)(b) were upset and yelling at the officers. Lt. Cuevas shoved § 87(2)(b) (**Allegation G: Force, substantiated**), and said, “Get the fuck away from me” (**Allegation H: Discourtesy, substantiated**). PO Weaver did not provide his shield number to § 87(2)(b) upon request (**Allegation I: Abuse of Authority, substantiated**). PO Weaver and Lt. Cuevas both failed to offer a business card to § 87(2)(b) (**Allegations J-K: Abuse of Authority, substantiated**).

The CCRB received BWC footage from all three officers (**Board Review 22-23, summarized at Board Review 2-4**). § 87(2)(b) filmed the interaction but only provided photos captured from the video (**Board Review 5-6**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Lieutenant Gabriel Cuevas stopped § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Stefan Weaver stopped § 87(2)(b)

Allegation (C) Force: Lieutenant Gabriel Cuevas used physical force against § 87(2)(b)

Allegation (D) Force: Police Officer Stefan Weaver used physical force against § 87(2)(b)

Allegation (E) Abuse of Authority: Police Officer Stefan Weaver frisked § 87(2)(b)

Allegation (F) Abuse of Authority: Lieutenant Gabriel Cuevas frisked § 87(2)(b)

§ 87(2)(b) testified (**Board Review 7**) that he, § 87(2)(b) and § 87(2)(b) were walking south on Kingsland Avenue after leaving Monsignor McGorlick Park. § 87(2)(b) was carrying a shoulder bag and wearing gray sweatpants, gray sneakers, a black beanie, and a gray North Face jacket. § 87(2)(b) was wearing a black jacket, black jeans, and a black hat. § 87(2)(b) and § 87(2)(b) were wearing black jackets. § 87(2)(b) noticed an unmarked silver sedan with tinted windows driving slowly behind them. The group started walking a little faster because they did not know who was in the car. Lt. Cuevas exited the backseat of the car. Some of § 87(2)(b) friends pulled out their phones to film. Lt. Cuevas walked behind the group, and the car drove alongside them. Lt. Cuevas grabbed § 87(2)(b) and § 87(2)(b) realized that Lt. Cuevas was an officer. PO Weaver exited the car and walked toward the group. Lt. Cuevas grabbed § 87(2)(b) by his collar and shoved him into the front of a building. § 87(2)(b) held his phone in front of his face, so the officers knew he was recording. PO Weaver put both of his hands on § 87(2)(b) shoulders and pushed him. PO Weaver held both of § 87(2)(b) hands with his hand and then reached both of his arms around § 87(2)(b) as if hugging him, and patted § 87(2)(b) sides and coat pockets. The investigation was unsuccessful in its attempts to make contact with § 87(2)(b) or § 87(2)(b).

Lt. Cuevas's BWC (**Board Review 21, beginning at 00:22**) shows him following the group on foot after exiting the RMP. There is not yet any audio in the footage. The group walks a little faster while sporadically looking back toward Lt. Cuevas, and it appears that one of them may already be holding up a cellphone as if to film with it. PO Weaver's BWC (**Board Review 23, beginning at 00:47**) shows him approaching the group from the front and reaching them before Lt. Cuevas does. § 87(2)(b) and § 87(2)(b) are in front. § 87(2)(b) is holding up his phone as if he is using it to film. § 87(2)(b) has both hands up and out in front of him – he holds his phone in his right hand, and his left hand is empty. PO Weaver takes control of § 87(2)(b) and Lt. Cuevas arrives and stops § 87(2)(b). PO Weaver's footage shows that he touches § 87(2)(b) left arm with his right hand and pushes him toward some garbage cans. PO Weaver tells him to relax, and § 87(2)(b) replies, "We didn't do nothing." PO Weaver grabs § 87(2)(b) left wrist and again tells him to relax. § 87(2)(b) says, "I'm not putting my hands on you." § 87(2)(b) is recording on his phone with his right hand. PO Weaver brings § 87(2)(b) to the building façade and touches his jacket and bag. § 87(2)(b) asks PO Weaver for his shield number, and PO Weaver does not reply. PO Weaver releases § 87(2)(b) and tells him to take his hands off him.

Lt. Cuevas's footage (**Board Review 2**) shows that he grabs § 87(2)(b) by putting his left hand on his chest and holding § 87(2)(b) left arm with his right hand. § 87(2)(b) has his phone in his right hand and there is a face mask in his left jacket pocket. § 87(2)(b) says that they did not commit a crime and tells Lt. Cuevas that it is an illegal search. Lt. Cuevas pats § 87(2)(b) jacket pockets before releasing him.

PO Weaver testified (**Board Review 9**) that he saw the group stopped at a corner, and § 87(2)(b) saw the police vehicle and alerted his friends to the presence of officers by saying, "Yo, the boys are here." The four men then switched from walking in a straight line, shoulder-to-shoulder with one another, to walking such that two of the men were in front, and § 87(2)(b) and another man were in back. § 87(2)(b) then switched places with one of the men in front, which PO Weaver interpreted as an attempt to conceal himself from the officers' view. § 87(2)(b) removed his fanny pack, took an object out of it, placed the object in his front jacket pocket, and then returned to walking in the back of the group. PO Weaver testified that he could see, from his position inside the vehicle, that the object in § 87(2)(b) jacket pocket object was circular and pointed, which he believed to be consistent with the shape of a firearm. The group then began to walk at a faster pace. PO Weaver specified that, when he first approached § 87(2)(b) still had one hand in his jacket pocket, and he held a phone with his other hand to record the interaction. PO Weaver stopped § 87(2)(b) and began to frisk the pocket that still held the object which § 87(2)(b) had transferred from his fanny pack, and § 87(2)(b) continued trying to walk away. PO Weaver did not feel anything in § 87(2)(b) pocket during the frisk.

PO Weaver created Stop Reports for § 87(2)(b) and § 87(2)(b) (**Board Review 10**), the narratives of which are identical, describe the entire incident, and are largely consistent with PO Weaver's testimony. The reports specify that § 87(2)(b) placed the object in his *left* jacket pocket, that § 87(2)(b) kept his hand in that pocket after putting the object there, and that he kept looking down at the pocket. The reports also have a somewhat more detailed description of the bulge: "The outline appeared to be a circular and long heavy weighted object which consistent to be the slide of a firearm [*sic*]." The reports also note that the "officers determined that the heavily weighted object that was in § 87(2)(b) pocket] was a cellphone."

Lt. Cuevas' testimony (**Board Review 8**) was not substantially consistent with PO Weaver's account, nor with the narrative portion of the Stop Reports. Lt. Cuevas recounted that PO Angello noticed the four men and said something along the lines of, "Two of those guys have bulges." Lt. Cuevas implicitly understood this to mean that these bulges were believed to be firearms. Lt.

Cuevas did not observe the bulges himself, did not know which two men had the bulges, and did not know where the bulges were located on the two men. Lt. Cuevas lowered his window and heard § 87(2)(b) warn his friends that the officers were there by saying, “The boys.” Lt. Cuevas called out to the group from within the car, and in response they walked faster and looked back over their left shoulders. Lt. Cuevas determined they needed to stop all four men because he did not know which two of them had the suspicious bulges. Lt. Cuevas exited the vehicle and began to call out to the group while walking behind them, but they kept walking away from him. He saw PO Weaver approach and extend his hands toward § 87(2)(b) as if to grab him, and § 87(2)(b) pushed PO Weaver’s hands off of him and attempted to walk around him. Lt. Cuevas concluded from this observation that § 87(2)(b) must be one of the two men with bulges, so he decided to frisk § 87(2)(b). Lt. Cuevas grabbed § 87(2)(b) by the jacket, and § 87(2)(b) attempted to forcefully walk past Lt. Cuevas. Lt. Cuevas frisked around § 87(2)(b) waistband and did not find anything. § 87(2)(b) was trying to make space by pushing off of Lt. Cuevas and walking away from him. § 87(2)(b) was yelling, “What’s your probable cause?” while recording on his phone. Lt. Cuevas then released § 87(2)(b).

Despite Lt. Cuevas’ testimony, the video footage makes clear that the officers did not stop § 87(2)(b) or § 87(2)(b). Absent more comprehensive video footage, the investigation could not determine whether § 87(2)(b) verbally alerted his friends to the presence of officers, nor whether he transferred an object from his bag to his pocket. The footage does make clear, however, that § 87(2)(b) did not have either hand in his jacket pockets when PO Weaver first approached him.

People v. Jones, 164 A.D.3d 1363 (2nd Dept., 2018) (**Board Review 11**) describes a scenario in which an officer observed an individual with a slight bulge in his right jacket pocket. The officer attempted to conduct a level two encounter (as defined by *People v. De Bour*, 40 N.Y.2d 210 (**Board Review 12**)) by saying, “Police,” and following the individual. These circumstances – the bulge in the jacket pocket and the individual walking away – were not enough to form a reasonable suspicion of a particular criminal action. The court in this case ruled that “police pursuit of an individual significantly impedes the person’s freedom of movement and thus must be justified by reasonable suspicion that a crime has been, is being, or is about to be committed,” and that a “bulging jacket pocket is hardly indicative of criminality. ... [A] pocket bulge, unlike a waistband bulge, could be caused by any number of innocuous objects, and an individual has a right to be let alone and refuse to respond to police inquiry.” Patrol Guide Procedure 221-01 (**Board Review 13**) states that all force used must be reasonable under the circumstances, and that officers “will use only the reasonable force necessary to gain control or custody of a subject.”

§ 87(2)(g)
[REDACTED]

It is therefore recommended that **Allegations A & E** be closed as

It is clear from the BWC footage that Lt. Cuevas' testimony was not accurate. During an earlier portion of the incident, he instructed § 87(2)(b) to move away from him, and § 87(2)(b) complied. On the contrary, in the moments leading up to Lt. Cuevas shoving § 87(2)(b) did not "come at" Lt. Cuevas, and Lt. Cuevas did not instruct § 87(2)(b) to move before shoving him.

As stated above, Patrol Guide Procedure 221-01 (Board Review 13) states that all force used must be reasonable under the circumstances, and that officers "will use only the reasonable force necessary to gain control or custody of a subject." NYPD Disciplinary Court Case No. 2015-15012 (Board Review 14) held that officers may not use profanity if it serves no legitimate purpose other than to demean, belittle, or goad civilians, or to flaunt their authority.

§ 87(2)(g)

It is therefore recommended that **Allegations L and M** be closed as **substantiated**.

Allegation (I) Abuse of Authority: Police Officer Stefan Weaver refused to provide his shield number to § 87(2)(b)

Allegation (J) Abuse of Authority: Police Officer Stefan Weaver failed to provide § 87(2)(b) with a business card.

Allegation (K) Abuse of Authority: Lieutenant Gabriel Cuevas failed to provide § 87(2)(b) with a business card.

In § 87(2)(b) CCRB statement (**Board Review 7**), he stated that he and his friends were asking for the officers' information by saying things like, "What's your badge number? You can't search us, why are you doing this?" § 87(2)(b) started telling the officers things like, "You scared us, we're scared. You didn't identify yourselves, don't get scared and shoot us, we're just kids." Lt. Cuevas said he did not have a shield number because he was a lieutenant. Lt. Cuevas kept telling § 87(2)(b) to come with him and talk to him by the officers' car, and § 87(2)(b) said no and walked away. § 87(2)(b) never learned why he and his friends were stopped and never received any business cards.

In PO Weaver's BWC (**Board Review 3, 01:10**), § 87(2)(b) asks him, "What's your badge number?" Throughout the rest of the footage, PO Weaver never provides his shield number or his business card. In Lt. Cuevas's BWC footage (**Board Review 2, 01:34**), § 87(2)(b) repeatedly asks Lt. Cuevas for his shield number. Lt. Cuevas says, "Do you want one of my cards?" § 87(2)(b) does not respond and immediately moves on to making statements about other issues, in a manner consistent with rejecting Lt. Cuevas' offer. § 87(2)(b) and § 87(2)(b) walk away from the officers, but § 87(2)(b) remains for a few minutes to continue talking to them about their conduct. At the end of the encounter (**02:55 – 03:47**), Lt. Cuevas tells § 87(2)(b) his name and rank but does not offer a business card. The Stop Reports for this incident (**Board Review 10**) state that business cards were offered and refused.

Lt. Cuevas testified (**Board Review 8**) that he provided § 87(2)(b) with his name and rank verbally because he had run out of business cards. Lt. Cuevas did not recall when he ran out of his business cards, and he was not equipped with generic business cards at the time of the incident. PO Weaver testified (**Board Review 9**) that he could not tell if anyone had asked for his name or shield number because there was a lot of yelling. PO Weaver believed that because the individuals were filming,

they had successfully acquired his name and shield number, so he did not need to provide it. PO Weaver stated that Lt. Cuevas had offered a business card to § 87(2)(b) so PO Weaver did not feel it was necessary to offer or provide anyone with a business card.

It is evident from the BWC footage that Lt. Cuevas offered a card to § 87(2)(b) and was rebuffed, but that he never offered a card to § 87(2)(b). While § 87(2)(b) and § 87(2)(b) did become quite adversarial and insulting toward the officers in the minute after the stop, there was a sustained time period after they disengaged in which the officers had a calm conversation with § 87(2)(b).

Administrative Guide Procedure 304-11 (Board Review 15) states that officers must proactively offer a business card to anyone whom they stop or frisk. It also instructs officers to courteously and clearly state their rank, name, shield number, and command, or otherwise provide them to anyone who requests they do so.

The BWC footage shows that § 87(2)(b) asked PO Weaver directly for his shield number, and PO Weaver never provided it. § 87(2)(g)

It is therefore recommended that **Allegations J-K** be closed as **substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b), § 87(2)(b), and § 87(2)(b) have been party (**Board Review 16**). § 87(2)(b)
- PO Stefan Weaver has been a member of the NYPD for five years and has been a subject in one other CCRB complaint and two other allegations, none of which were substantiated. § 87(2)(g)
- Lt. Gabriel Cuevas has been a member of the NYPD for 15 years and has been a subject in 24 other CCRB complaints and 68 other allegations, of which 18 were substantiated (**Board Review 18**):
 - 201610447 involved substantiated allegations of stop, frisk, and refusal to provide name/shield number Lt. Gabriel Cuevas. The Board recommended Command Discipline B and the NYPD imposed Command Discipline A.
 - 201804454 involved substantiated allegations of frisk and search of person against Lt. Cuevas. The Board recommended Command Discipline B and the NYPD imposed Command Discipline A.
 - 201909824 involved substantiated allegations of frisk and search of person against Lt. Cuevas. The Board recommended Command Discipline B and the NYPD imposed Command Discipline B.
 - 202002825 involved substantiated allegations of stop, frisk, refusal to obtain medical treatment against Lt. Gabriel Cuevas. The Board recommended Charges, but it was closed with no disciplinary action as the Charges were not served.
 - 202100913 involved substantiated allegations of failure to provide RTKA against Lt. Gabriel

Cuevas. The Board recommended Command Discipline A, but the NYPD took no disciplinary action.

- 202103678 involved substantiated allegations of frisk, discourtesy word, failure to provide RTKA card against Lt. Gabriel Cuevas. The Board recommended Charges and the NYPD has not yet imposed discipline.
- § 87(2)(g) [REDACTED]
- 202302081 involves an allegation of a stop and to this date remains open.
- 202303078 involves allegations of physical force and failure to provide RTKA card and to this date remains open.
- § 87(2)(g) [REDACTED]
- 202304216 involved an allegation of physical force and was closed pending litigation.
- 202305100 involves allegations of refusal to provide name, refusal to provide shield number, and seizure of property and to this date remains open.
- 202309796 involves an allegation of physical force and to this date remains open.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) [REDACTED] declined to mediate this complaint.
- As of September 18, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (**Board Review 19**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

RPBP History

- The RPBP Unit reviewed this complaint and ultimately decided it did not contain actionable allegations of Racial Profiling or Bias-Based Policing.

Squad No.: 5

Investigator:	<u>Julia Sapienza</u>	<u>Inv. Julia Sapienza</u>	<u>December 7, 2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Daniel Giansante</u>	<u>IM Daniel Giansante</u>	<u>December 7, 2023</u>
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date